



TATTOOS
AND
COPYRIGHT

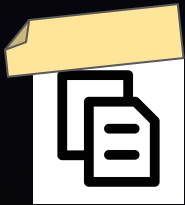
Introduction

Tattoos. Ink graphic designs, punctured into one's skin for the sake of symbolism, religion, or anything really! Though, despite the versatile use of these human engravings, one issue remains in the spotlight. The freedom that comes with it. Unlike many other types of intellectual properties, tattoos are a trickier medium of art to pin down. Should they, or should they NOT be protected under copyright?



My Thoughts

The concise answer is that it should be protected under copyright laws, and dependent upon the tattoo artist's purchased designs. Legally speaking, they often are technically derivatives of work they are based off of, unless the design is completely originally conceived. Therefore, it stands to reason that the designer of the derivative (the tattoo artist) should be mostly responsible for it, at least under normal circumstances.



The Facts: Why it should be protected



As I previously mentioned, if the tattoo is based off of another work, then it qualifies as a derivative. Therefore, legally, it should fall under the standards of such. Once copyright is employed to the derivative, it becomes the owned, intellectual product of the artist. Therefore, under this, the tattoo artist should gain at least partial control of the work added to the original concept, since the artist now legally owns it and it is subject to their hold of it's copyright. Of course, if the design is completely original, the artist should acquire the copyright associated with the work. Alternatively, fair use laws such as parody can also apply to tattoos, as stated by OlarteMoure. Where it gets a bit blurry is the tattoo itself. Assuming it does qualify as a derivative of the original work, the derivative laws will go into place, allowing ownership of the work to go to the artist and putting the work under protection. But, what if it DOESN'T qualify as a derivative of the original work?

The Facts: Why it should NOT be protected

As stated in the Cornell Law School derivative work page, *“In order to receive copyright protection, a derivative work must add a sufficient amount of change to the original work.”* Which means that, by these standards, if the tattoo design happens to NOT add a sufficient amount of creative liberty and change, the tattoo merely classifies as a reproduction of the original. As said by Copyright Alliance, *“The reproduction right grants the copyright owner the ability to control the making of a copy of the work,”* Meaning that if the tattoo does NOT qualify as a derivative, the ownership is largely still property of the copyright holder. And, on a different note, enforcing these specific copyright and creative commons laws over MILLIONS of small images with hundreds of different types of cases seems kind of inefficient.



Overview

Overall, the debate is still at large, and there are arguments to both sides. In fact, it may never get an ultimately satisfying conclusion.

SOURCES:

<https://copyrightalliance.org/education/copyright-law-explained/copyright-owners-rights/copyright-exclusive-rights/>

https://www.law.cornell.edu/wex/derivative_work

<https://olartemoure.com/en/intellectual-property-behind-tattoos/>

<https://scholarship.law.tamu.edu/cgi/viewcontent.cgi?article=1180&context=journal-of-property-law>